



U.S. Customs and Border Protection

PUBLIC VERSION

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Re: Notice of Initiation of Investigation and Interim Measures - EAPA Cons. Case 8143

To the Counsel and Representatives of the Above-Referenced Entities:

This letter is to inform you that U.S. Customs and Border Protection (CBP) has commenced a formal investigation of Commercial Steel Products LLC (CSP) and JOL Tubular, Inc. (JOL Tubular) (collectively, the Importers) under Title IV, Section 421 of the Trade Facilitation and Trade Enforcement Act of 2015, commonly referred to as the Enforce and Protect Act (EAPA). CBP is investigating whether the Importers evaded antidumping duty (AD) and countervailing duty (CVD) orders A-570-943 and C-570-944 on oil country tubular goods (OCTG) from the People's Republic of China (China) when importing OCTG into the United States.¹ CBP has imposed interim measures because there is reasonable suspicion that the Importers entered

¹ See *Certain Oil Country Tubular Goods from the People's Republic of China: Final Affirmative Countervailing Duty Determination, Final Negative Critical Circumstances Determination*, 74 FR 64045 (December 7, 2009), as amended in *Certain Oil Country Tubular Goods from the People's Republic of China: Amended Final Affirmative Countervailing Duty Determination and Countervailing Duty Order*, 75 FR 3203 (January 20, 2010); see also *Certain Oil Country Tubular Goods from the People's Republic of China: Final Determination of Sales at Less Than Fair Value, Affirmative Final Determination of Critical Circumstances and Final Determination of Targeted Dumping*, 75 FR 20335 (April 19, 2010), as amended in *Certain Oil Country Tubular Goods from the People's Republic of China: Amended Final Determination of Sales at Less Than Fair Value and Antidumping Duty Order*, 75 FR 28551 (May 21, 2010) (AD/CVD orders).

merchandise covered by the AD/CVD orders into the customs territory of the United States through evasion.²

Period of Investigation

Pursuant to 19 C.F.R. § 165.2, entries covered by an EAPA investigation are those “entries of allegedly covered merchandise made within one year before the receipt of an allegation...” Entry is defined as “the entry, or withdrawal from warehouse for consumption, of merchandise in the customs territory of the United States.”³ CBP acknowledged receipt of the properly filed allegations against the Importers on January 14, 2025.⁴ The entries covered by this investigation are those entered for consumption, or withdrawn from warehouse for consumption, from January 14, 2024, through the pendency of this investigation.⁵

Initiation

CBP will initiate an investigation if it determines that “{t}he information provided in the allegation...reasonably suggests that the covered merchandise has been entered for consumption into the customs territory of the United States through evasion.”⁶ Evasion is defined as “the entry of covered merchandise into the customs territory of the United States for consumption by means of any document or electronically transmitted data or information, written or oral statement, or act that is material and false, or any omission that is material, and that results in any cash deposit or other security or any amount of applicable antidumping or countervailing duties being reduced or not being applied with respect to the covered merchandise.”⁷ Thus, the allegation must reasonably suggest not only that merchandise covered by an AD and/or CVD order was entered into the customs territory of the United States by the importer alleged to be evading, but also that such entry was made with a material false statement or act, or material omission, that resulted in the reduction or avoidance of applicable AD and/or CVD cash deposits or other security.⁸

The allegations claim that the Importers are entering Chinese-origin OCTG that were transshipped through Boly Pipe Co., Ltd. (Boly Pipe) in Thailand.⁹ Boly Pipe was established in Thailand on March 26, 2012.¹⁰ Its website, marketing materials, and catalog claim it is a manufacturer of OCTG in Thailand’s Amata City Rayong Industrial Zone.¹¹ Boly Pipe’s website lists its company headquarters’ address in Zhejiang Province, China and states that

² See 19 U.S.C. § 1517(e); *see also* 19 C.F.R. § 165.24.

³ See 19 U.S.C. § 1517(a)(4); *see also* 19 C.F.R. § 165.2.

⁴ See Email from CBP, “EAPA 8143 – Official Receipt of Properly Filed Allegation,” dated January 14, 2025 (JOL Tubular Official Receipt); *see also* Email from CBP, “EAPA 8160 – Official Receipt of Properly Filed Allegation,” dated January 14, 2025 (CSP Official Receipt).

⁵ See 19 C.F.R. § 165.2.

⁶ See 19 C.F.R. § 165.15(b).

⁷ See 19 C.F.R. § 165.1.

⁸ *Id.*

⁹ See Letter from the Alleger, “Oil Country Tubular Goods from China: Request for an Investigation under the Enforce and Protect Act,” dated December 17, 2024 (JOL Tubular Allegation); *see also* Letter from the Alleger, “Oil Country Tubular Goods from China: Request for an Investigation under the Enforce and Protect Act,” dated December 17, 2024 (CSP Allegation) (Collectively, the Allegations). The Alleger, U.S. OCTG Manufacturers Association, is a trade association, all of whose members produce OCTG in the United States and, as such, has standing to submit the Allegations pursuant to 19 U.S.C. § 1517(a)(6)(A)(iv), 19 C.F.R. § 165.1(5), and 19 C.F.R. § 165.11(a); *see* Allegations at Exhibit 2.

¹⁰ See Allegations at Exhibit 6, pages 1, 3 and Exhibit 7, page 2.

¹¹ *Id.* at Exhibit 6, pages 1, 3; Exhibit 7, pages 2, 10; and Exhibit 8, pages 1-2.

Zhejiang Jianli Co., Ltd. (Jianli) invested in it.¹² Accordingly, Jianli’s website reflects its affiliation with Boly Pipe as well. Specifically, it states that Jianli was founded in 1993 and references Boly Pipe and its alternate spelling, “Baoli Steel Pipe (Thailand) Co. Ltd.” multiple times.¹³

Boly Pipe’s website and marketing materials indicate it is affiliated with JOL Tubular, and that Boly Pipe is a part of the “JOL Group (Zhejiang Jianli Company)” and “wholly owned by JOL Group (China).”¹⁴ Jianli’s website also denotes its main email address as jol@cnjol.cn and contains several pictures referencing “JOL {.”¹⁵ Moreover, Boly Pipe’s website expressly states that JOL Tubular is its Houston branch. Thus, the preceding references indicate that JOL Tubular, Boly Pipe, and Jianli are affiliated companies that are part of the same company group.

Jianli is a producer of OCTG in China.¹⁶ Its website states that it has a one million square meter facility, employs 2,300 people, and produces “oil pipe.”¹⁷ Correspondingly, a 2019 blog post on its website contains a picture of what appears to be a trade show booth that states “JOL Seamless OCTG Pipe Line Pipe.”¹⁸ Finally, several of the U.S. Department of Commerce’s Federal Register notices pertaining to Jianli’s AD/CVD proceedings list Jianli as a Chinese exporter and producer of OCTG and gave it a separate AD rate.¹⁹ Commerce also issued questionnaires to Jianli and visited its facility in China.²⁰ Thus, Jianli is an exporter and producer of OCTG and a potential source of Chinese-origin OCTG for its affiliates Boly Pipe and JOL Tubular.

The Allegor calculated the quantities of OCTG that Boly Pipe exported to the United States using figures derived from [Source] shipment data.²¹ Based on these figures, the Allegor stated that Boly Pipe exported a relatively small amount of OCTG to the United States in 2021, 1,347 metric tons (mt), which drastically increased to 67,228 mt in 2023.²² However, the Allegor provided a formal declaration that casts doubt on whether Boly Pipe actually produced all the OCTG in these exports.²³ In it, the declarant [statement & date] Boly Pipe’s Thai facility during “normal business hours” and [descriptive information]:²⁴

[statement]. No other staff were visible [descriptive information] was entirely silent, with no noise of operation of any kind. [descriptive information] most of Boly Pipe’s production is exported to the United States.²⁵

The declaration [descriptive information].²⁶ [descriptive information] show no production and an [descriptive].²⁷

¹² *Id.* at Exhibit 6, page 3.

¹³ *Id.* at Exhibit 9, pages 11-12, 18-24.

¹⁴ *Id.* at Exhibit 6, pages 1, 3 and Exhibit 7.

¹⁵ *Id.* at Exhibit 9, pages 8, 9, 14-16, 19-27.

¹⁶ *Id.* at Exhibits 9-10.

¹⁷ *Id.* at Exhibit 9, pages 7, 14.

¹⁸ *Id.* at Exhibit 9, page 8.

¹⁹ *Id.* at Exhibit 1, pages 2, 4, 6, 14, 17-18, and Exhibit 10, pages 6, 10-11.

²⁰ *Id.* at Exhibit 10.

²¹ *Id.* at 9 and Exhibit 4.

²² *Id.*

²³ *Id.* at Exhibit 12, page 1.

²⁴ *Id.*

²⁵ *Id.*

²⁶ *Id.* at Exhibit 12, pages 2-39.

²⁷ *Id.*

[[Source](#)] shipment data indicates that JOL Tubular imported numerous shipments from Boly Pipe in 2023-2024.²⁸ Although Boly Pipe's 2024 shipments to JOL Tubular were ostensibly classified under a harmonized tariff schedule of the United States (HTSUS) number for line pipe, 7304.19, Boly Pipe also exported numerous 2023 shipments to JOL Tubular classified under the HTSUS number for OCTG, 7304.29.²⁹ However, the merchandise descriptions in the 2024 shipments appear to identify OCTG nonetheless.³⁰ Specifically, the 2024 merchandise in the shipments is described as "Prime Newly Produced Seamless Plain End Casing" under steel grades L80 or P110.³¹ The scope of the AD/CVD orders states that it covers OCTG casing.³² Additionally, Boly Pipe's website, marketing materials, and catalog list L80 and P110 as steel grades covered by the American Petroleum Institute's (API) standard for OCTG, API 5CT.³³ Thus, in spite of the shipment data's HTSUS number for line pipe, Boly Pipe's 2024 shipments to JOL Tubular appear to contain OCTG.

[[Source](#)] shipment data shows that during 2023 CSP imported several shipments described as "seamless plain end casing."³⁴ These shipments were also classified under HTSUS 7304.19, which is an HTS designation for line pipe, and the shipper column was blank.³⁵ However, the [[Source](#)] shipment data indicated that in October 2022 CSP imported merchandise described as "seamless plain end casing", which was P110 steel grade and under HTSUS 7304.19.³⁶ In light of JOL Tubular's similar HTSUS classification, OCTG steel grade, and shipment descriptions in the previous paragraph, which ultimately appeared to reference OCTG, it is possible that these CSP shipments likewise contained OCTG. Moreover, recent screenshots of CSP's website (from December 17, 2024) contain more direct references to OCTG that CSP obtained from Boly Pipe.

The Inventory List section of CSP's website lists L80 and P110 steel grades of OCTG casing as being "in stock."³⁷ Some sizes of these OCTG describes it as "SMLS" {seamless} in the Form column, "PE" {plain end} in the Finish column, and "Thailand" or "Boly" in the Origin column.³⁸ The Inventory List section also identifies "Incoming Material" of L80 and P110 OCTG casing that is seamless, plain end, and with an origin of "Boly."³⁹ As such, the [[Source](#)] shipment data and CSP's website considered together indicate that CSP has recently imported OCTG from Boly Pipe.

Initiation Assessment

In assessing the basis for the Allegations, CBP found that the information the Allegor submitted reasonably suggested that the Importers entered merchandise covered by the AD/CVD orders into the customs territory of the United States through evasion.⁴⁰ Specifically, information in the Allegations indicate that the Importers entered Chinese-origin OCTG from Boly Pipe that was

²⁸ See JOL Tubular Allegation at Exhibit 4.

²⁹ *Id.*

³⁰ *Id.*

³¹ *Id.*

³² *Id.* at Exhibit 1. "The scope of this order consists of certain oil country tubular goods ("OCTG"), which are hollow steel products of circular cross-section, including oil well casing and tubing, of iron...."

³³ *Id.* at Exhibit 6, page 25; Exhibit 7, pages 9-10; and Exhibit 8, page 8.

³⁴ See CSP Allegation at Exhibit 4, page 6.

³⁵ *Id.*

³⁶ *Id.* at Exhibit 4, page 7.

³⁷ *Id.* at Exhibit 5, page 1.

³⁸ *Id.* at Exhibit 5, page 6.

³⁹ *Id.* at Exhibit 5, pages 8-9.

⁴⁰ See Allegations.

transshipped.⁴¹ The following facts considered together reasonably suggest that at least some of the OCTG Boly Pipe exported was of Chinese-origin:

1. Jianli appears to be the Chinese parent company of Boly Pipe and JOL Tubular; thus, it is affiliated with both companies.⁴²
2. Jianli is a Chinese producer of OCTG.⁴³ Its website indicates that it has a longstanding, large factory and, therefore, has made substantial capital expenditures for its OCTG production.⁴⁴ As such, Jianli is a potential source of Chinese-origin OCTG for Boly Pipe and JOL Tubular.⁴⁵
3. The declarant [**descriptive information**] Boly Pipe during normal business hours [**date & information**].⁴⁶ Correspondingly, [**descriptive information**] the declaration also indicated a lack of production at the facility.⁴⁷

This information reasonably suggested that JOL Tubular and CSP are entering Chinese-origin OCTG covered by the AD/CVD orders through Jianli and that was transshipped through Boly Pipe. Accordingly, CBP initiated investigations on the Importers.⁴⁸

Interim Measures

Not later than 90 calendar days after initiating an investigation under EAPA, TRLED will decide based on the record of the investigation if there is reasonable suspicion that merchandise covered by the AD/CVD orders was entered into the United States through evasion.⁴⁹ CBP need only have sufficient evidence to support a reasonable suspicion that the Importers alleged to be evading entered merchandise covered by an AD or CVD order into the United States by a material false statement or act, or material omission, that resulted in the reduction or avoidance of applicable AD or CVD cash deposits or other security.⁵⁰ If reasonable suspicion exists, CBP will impose interim measures pursuant to 19 U.S.C. § 1517(e) and 19 C.F.R. § 165.24. As explained below, CBP is imposing interim measures because there is reasonable suspicion that the Importers entered Chinese-origin covered merchandise into the United States through evasion by means of transshipment.⁵¹

CF-28 Responses

After initiating this investigation, CBP issued CBP Form 28 (CF-28) requests for information to CSP and JOL Tubular on February 18, 2025.⁵² In each of these CF-28s, CBP requested manufacturer information, production documentation, raw material documentation, a mill certificate, purchase orders, commercial invoices, transportation documentation, and proofs of

⁴¹ *Id.*

⁴² *Id.* at Exhibits 6-9.

⁴³ *Id.* at Exhibit 9, page 14.

⁴⁴ *Id.* at Exhibit 9, pages 3, 5, 7, 12, 14.

⁴⁵ *Id.* at Exhibits 9-10.

⁴⁶ *Id.* at Exhibit 12, page 1.

⁴⁷ *Id.* at Exhibit 12, pages 2-39.

⁴⁸ See CBP Memorandum, “Initiation of Investigation for EAPA 8143 and 8160 (Consolidated Case 8143),” dated February 5, 2025 (Initiation Memorandum).

⁴⁹ See 19 C.F.R. § 165.24(a); see also Initiation Memorandum.

⁵⁰ See 19 U.S.C. § 1517(e); see also 19 C.F.R. § 165.1 and § 165.24.

⁵¹ See Initiation Memorandum.

⁵² See JOL Tubular’s CF-28 Response, dated March 13, 2025 (JOL Tubular CF-28 Response). This concerned entries [**##**]5108, [**##**]8532, and [**##**]4463 from Boly Pipe. See also CSP’s CF-28 Response, dated March 18, 2025 (CSP CF-28 Response). This concerned entries [**##**]7916 and [**##**]0883 from Boly Pipe.

payment for several POI entries from Boly Pipe.⁵³ CSP and JOL Tubular subsequently submitted their respective CF-28 responses as described below.⁵⁴

The formatting of the Importers' CF-28 responses were very similar, from which CBP could infer that Boly Pipe provided most of the answers for both responses.⁵⁵ Both responses stated that Boly Pipe opened in Thailand on October 6, 2011 and is currently owned by [**Name, %, and information**] percent.⁵⁶ JOL Tubular acknowledged that it is affiliated with Boly Pipe, whereas CSP stated it is not affiliated with Boly Pipe.⁵⁷ JOL Tubular stated that it is affiliated with another company named Nanobest Limited (Nanobest), which has addresses in [**Location**], China and in the [**Country**].⁵⁸ As such, JOL Tubular, Boly Pipe, and Nanobest are affiliated with each other. Both responses provided a list of corporate officers listing Zhao Jian as the general manager of JOL Tubular, Boly Pipe, and Nanobest.⁵⁹

Both responses stated that the raw material used to produce the OCTG was round steel bar, also known as steel billet, and was grade [**descriptive information**].⁶⁰ Both responses explained that Nanobest purchases these raw materials, and Boly Pipe used them to produce OCTG.⁶¹ Both responses state that Nanobest subsequently exported Boly Pipe's OCTG.⁶²

As noted, CBP requested the same information from CSP and JOL Tubular. Of this requested information, CSP and JOL Tubular provided some, but not all, of the documents CBP requested. JOL Tubular did not provide its purchase orders or Boly Pipe's stamped timecards. CBP asked for complete production records, and JOL Tubular provided production documents for five production steps. However, other record information indicates it is unlikely that these were the complete production documents. The CF-28 responses did not indicate Boly Pipe's total number of OCTG production steps. The responses provided a list of Boly Pipe's equipment, which briefly explained each piece of equipment's production functions.⁶³ These descriptions indicated that Boly Pipe conducted at least [**#**] OCTG production steps.⁶⁴ For comparison, CF-28 responses from EAPA consolidated investigation 7890 (EAPA 7890) provided separate OCTG production documents for 16 production steps from Thai Oil Pipe Co. Ltd. (TOP) and for [**#**] production steps from Petroleum Equipment (Thailand) Co., Ltd. (PET).⁶⁵ Because Boly Pipe's list of equipment discusses far more than five production steps and other Thai OCTG producers provided much more than five production step documents as well, additional Boly Pipe production documents likely exist. As such, the completeness of Boly Pipe's production documents is in doubt.

Furthermore, the production documents contain multiple inconsistencies that call into doubt their accuracy and possibly their validity, as well. For example, JOL Tubular entry 5108's production

⁵³ *Id.*

⁵⁴ *Id.*

⁵⁵ *Id.*

⁵⁶ *Id.*

⁵⁷ *Id.*

⁵⁸ *Id.*

⁵⁹ *Id.*

⁶⁰ *Id.*

⁶¹ *Id.* Both responses also stated Nanobest "is the exporter of the selected entries, who purchased the raw materials and let its affiliated company, Boly Pipe ... process the raw materials into OCTG under a tolling agreement."

⁶² *Id.*

⁶³ *Id.*

⁶⁴ *Id.*

⁶⁵ See CBP Memorandum, "Adding Information to the Administrative Record of EAPA 8143," dated May 12, 2025 at Attachments 5-6 (May Memorandum). These figures do not include the mill test certificate.

documents indicate that Boly Pipe produced its OCTG during July 18-25, 2023.⁶⁶ These production documents listed extra heat numbers that were not exported.⁶⁷ To clarify which heat numbers it exported, Boly Pipe placed red boxes around each heat number it exported for the entry. The production documents indicate that Boly Pipe packaged [#] pieces of these heat numbers for export.⁶⁸ However, the packing lists, bill of lading, and mill test certificates all indicate that Boly Pipe exported [#] pieces.⁶⁹ Because it highlighted these specific heat numbers, it was not apparent why Boly Pipe packaged more pieces than it exported.

With respect to Boly Pipe's mill test certificates for entry 5108, these certificates detailed various tests, processes, and inspections performed on the heat numbers after the OCTG they referred to were completed (as opposed to partially produced), such as hydrostatic tests, heat treatment, O.D. Size {outer diameter} inspection, I.D. Size {inner diameter} inspection, and coating inspection.⁷⁰ These tests and inspections indicate they were performed after the OCTG were fully produced. However, the certificates were all dated on July 14, 2023. This date was several days before Boly Pipe's earlier production step when it began cutting solid round bars on July 18, 2023. Additionally, because solid round bars are solid, they did not have inner diameters to inspect.⁷¹ As such, the date's discrepancy casts doubt on their accuracy and validity.

Regarding JOL Tubular entry 4463, the production documents indicate that Boly Pipe cut the steel round bars from heat numbers [##] on June 23, 2023.⁷² However, the documents for the subsequent hot rolling step indicates Boly Pipe purportedly hot rolled those heat numbers the previous day, on June 22, 2023.⁷³ This is odd because Boly Pipe's process indicates that cutting the steel round bars occurs before they are hot rolled. Also, the mill test certificates for the completed OCTG from these heat numbers were dated June 21, 2023, which is before cutting or hot rolling.⁷⁴ No reason was given for these discrepancies.

Regarding JOL Tubular entry 8532, Boly Pipe ostensibly heat-treated heat numbers [##] on September 18, 2023. However, Boly Pipe purportedly packaged those heat numbers a couple days earlier on September 15-16, 2023.⁷⁵ No reason was provided as to why packaging occurred after heat treatment. Also, the final inspection document for the merchandise stated there were [##] total pieces, which matches the entry's invoices, packing lists, mill test certificates, and bill of lading.⁷⁶ Although the number of total pieces matched, the final inspection's weight ([##] kg) did not match the gross weight ([##] kg) or net weights ([##] kg) listed on the invoices,

⁶⁶ See JOL Tubular CF-28 Response.

⁶⁷ A heat number pertains to a batch of pipes and can be used to trace them.

⁶⁸ *Id.*

⁶⁹ *Id.*

⁷⁰ *Id.* Technically, heat treatment would be performed before the OCTG was completed; however, the mill test certificates' heat treatment field appears to denote what kind of heat treatment was performed.

⁷¹ *Id.*

⁷² *Id.*

⁷³ *Id.*

⁷⁴ *Id.* Also, the Thai import customs declaration indicated that the entry's raw materials arrived in Thailand on May 11, 2023. However, Boly Pipe's corresponding warehouse-in slip indicated that the raw materials entered its warehouse on May 2, 2023. This discrepancy is ambiguous because it is possible that Boly Pipe accidentally omitted the "1" in the day field and it should have been May 12, 2023.

⁷⁵ *Id.* Boly Pipe indicated that some of this entry drew some of its raw materials from the same raw material shipment used for the previous entry. As noted, the Thai customs import declaration indicated that the raw material arrived in Thailand on May 11, 2023. However, Boly Pipe's corresponding warehouse-in slip indicated that the raw materials entered its warehouse on May 2, 2023. This discrepancy is ambiguous because it is possible that Boly Pipe accidentally omitted the "1" in the day field and it should have been May 12, 2023.

⁷⁶ *Id.*

packing lists, mill test certificates, bill of lading, or entry summary.⁷⁷ Furthermore, the documents indicate that production purportedly occurred on July 4-7, 2023 and September 14-21, 2023. However, the mill test certificates were dated November 6, 2023, which was four months and one and a half months after each respective batch of production was completed.

Declarations

In EAPA 7890, the Alleger provided formal declarations detailing certain [descriptive information].⁷⁸ [situational information].⁷⁹ In [date & statement] Thai companies transship Chinese product to the United States as a product of Thailand, [descriptive information] TOP follows the same practice.”⁸⁰ In EAPA 7890’s subsequent determination, CBP found that TOP facilitated the transshipment of Chinese-origin OCTG through its facility in Thailand.⁸¹ As such, [situational information]. Because [situational information] support the conclusion that Boly Pipe is facilitating the transshipment of Chinese-origin OCTG.

Yifan Shipping Thailand

CSP’s and JOL Tubulars’ CF-28 responses indicated that Boly Pipe used the affiliated freight forwarders Yifan Shipping (Thailand) Co., Ltd. (Yifan Shipping Thailand) and Yifan Shipping (Singapore) Pte. Ltd. (Yifan Shipping Singapore).⁸² In EAPA 7890, CBP found that Yifan Shipping Thailand and Yifan Shipping Singapore may have helped TOP and PET facilitate the transshipment of Chinese-origin OCTG through Thailand.⁸³ A press release pertaining to Yifan Shipping Thailand noted that it has several branches in China and is headquartered in Shanghai.⁸⁴ Invoices and Thai import declarations indicate Yifan Shipping Thailand and Yifan Shipping Singapore helped Boly Pipe at each stage of the OCTG’s movement from China to Thailand to the United States. Yifan Shipping Thailand acted as Boly Pipe’s agent during the Thai import declaration process and appeared on the Thai customs declarations for Boly Pipe’s purported raw materials from China.⁸⁵ Yifan Shipping Thailand appeared to transport the merchandise from the Thai port to Boly Pipe’s facility and issued an invoice to Boly Pipe for that. A press release pertaining to Yifan Shipping Thailand even stated that it offered trucking services, including container pickup and drop-off.⁸⁶

After Boly Pipe purportedly produced the merchandise, Yifan Shipping Thailand transported “the OCTG from the factory to the export port{.}”⁸⁷ Both CF-28 responses note that Yifan Shipping Thailand “handl{ed} export customs declaration{.}”⁸⁸ Yifan Shipping Singapore then transported the OCTG from the Thailand port to the U.S. port.⁸⁹ This scenario mirrors the aforementioned press release, which states Yifan Shipping Thailand offers logistical services from Thailand’s Sriracha Harbour and Laem Chabang Ports to Houston, Texas.⁹⁰ Yifan

⁷⁷ *Id.*

⁷⁸ See May Memorandum at Attachment 3, pages 2-5.

⁷⁹ *Id.* at Attachment 3, pages 7-8.

⁸⁰ *Id.* at Attachment 3, pages 2, 4.

⁸¹ *Id.* at Attachment 1.

⁸² See CSP CF-28 Response; see also JOL Tubular CF-28 Response.

⁸³ See May Memorandum at Attachment 1, pages 30-32.

⁸⁴ See May Memorandum at Attachment 4, pages 4, 7.

⁸⁵ *Id.*

⁸⁶ *Id.* at Attachment 4, pages 4-5.

⁸⁷ *Id.* at Attachment 4, page 5.

⁸⁸ *Id.*

⁸⁹ *Id.*

⁹⁰ *Id.* at Attachment 4, pages 1-2.

Shipping Thailand has an affiliated company in Houston named Yifan Shipping (USA) Co., Ltd. (Yifan Shipping USA).⁹¹ Yifan Shipping USA's website states it has a "multipurpose storage fuel terminal in the Houston Port{.}"⁹²

Notably, the press release reveals Yifan Shipping Thailand's willingness to participate in transshipment. In it, Yifan Shipping Thailand said "{c}ustomers looking to ship Chinese products to the US can reroute the cargo to Thailand and depart from here, alleviating the US's trade embargo policy for Chinese products."⁹³ Correspondingly, [**situational information**].⁹⁴ It said that Yifan Shipping Thailand's [**Name and information**].⁹⁵ It specified that Yifan Shipping Thailand [**situational information**].⁹⁶ The press release [**descriptive word**] stated Yifan Shipping Thailand "has warehouses in the Laem Chabang area, two are operational, and the third one is in the process."⁹⁷

The discrepancies in the CF-28 responses and the information in the declaration, along with Boly Pipe's use of Yifan Shipping Thailand and Yifan Shipping Singapore, all support a reasonable suspicion that the Importers' imported transshipped Chinese-origin OCTG through Boly Pipe in Thailand.

Enactment of Interim Measures

Based on the record evidence described above, CBP determines that reasonable suspicion exists that CSP and JOL Tubular entered Chinese-origin OCTG subject to AD/CVD orders A-570-943 and C-570-944 into the United States that were transshipped. Therefore, CBP is imposing interim measures pursuant to this investigation.⁹⁸ Specifically, in accordance with 19 U.S.C. § 1517(e)(1)-(3), CBP shall:

- (1) suspend the liquidation of each unliquidated entry of such covered merchandise that entered on or after February 5, 2025, the date of the initiation of the investigation;
- (2) pursuant to the Commissioner's authority under section 1504(b) of this title, extend the period for liquidating each unliquidated entry of such covered merchandise that entered before the date of the initiation of the investigation February 5, 2025; and
- (3) pursuant to the Commissioner's authority under section 1623 of this title, take such additional measures as the Commissioner determines necessary to protect the revenue of the United States, including requiring a single transaction bond or additional security or the posting of a cash deposit with respect to such covered merchandise.⁹⁹

In addition, CBP will require live entry and reject any entry summaries that do not comply with live entry and require refiling of entries that are within the entry summary rejection period. CBP may also evaluate the Importers' continuous bonds to determine their sufficiency. Finally, CBP may pursue additional enforcement actions, as provided by law, consistent with 19 U.S.C. § 1517(h).

⁹¹ *Id.* at Attachment 4, pages 3, 7, 24, 28. They are affiliated through a common owner, Wang Jian.

⁹² *Id.* at Attachment 4, page 8.

⁹³ *Id.* at Attachment 4, page 5.

⁹⁴ *Id.* at Attachment 2.

⁹⁵ *Id.*

⁹⁶ *Id.* at Attachment 2, page 3.

⁹⁷ *Id.* at Attachment 2, pages 3, 5.

⁹⁸ *See* 19 U.S.C. § 1517(e); *see also* 19 C.F.R. § 165.24.

⁹⁹ *See also* 19 C.F.R. § 165.24(b)(1)(i)-(iii).

Consolidation of the Investigations

CBP is consolidating EAPA investigations 8143 and 8160 on the Importers into a single investigation.¹⁰⁰ The new consolidated (Cons.) case number will be EAPA Cons. Case 8143, and a single administrative record will be maintained. At its discretion, CBP may consolidate multiple allegations against one or more importers into a single investigation, pursuant to 19 C.F.R. § 165.13(b), which stipulates that the factors that CBP may consider in consolidating multiple allegations include, but are not limited to, whether the multiple allegations involve: 1) relationships between the importers; 2) similarity of covered merchandise; 3) similarity of AD/CVD orders; and 4) overlap in time periods of entries of covered merchandise.¹⁰¹ The Importers in these two investigations entered the same covered merchandise that was exported by the same Thai company and subject to the same AD/CVD orders on OCTG from China.¹⁰² In addition, the Importers' entries overlap within a similar period of investigation.¹⁰³ Because factors warranting consolidation are present in these investigations, CBP is consolidating them and will provide notice pursuant to 19 C.F.R. § 165.13(c). We note that the deadlines for the consolidated investigation have been set from the date of initiation of EAPA investigation 8143, which is February 5, 2025.¹⁰⁴

For future submissions or factual information that you submit to CBP pursuant to this EAPA investigation, please provide a business confidential version and public version to CBP and serve the public versions on the parties to this investigation.¹⁰⁵ Public versions of administrative record documents will be available via the EAPA Portal: <https://eapallegations.cbp.gov>. Please note that CBP is requiring that all documents submitted via the CMS are made text searchable, especially if those documents are submitted as PDFs.

Should you have any questions regarding this investigation, you may contact us at eapallegations@cbp.dhs.gov with "EAPA Cons. Case 8143" in the subject line of your email. Additional information on this investigation, including the applicable statute and regulations, may be found on CBP's website at: <https://www.cbp.gov/trade/trade-enforcement/tftea/eapa>.

Sincerely,



Victoria Cho
Director, Enforcement Operations Division
Trade Remedy Law Enforcement Directorate
CBP Office of Trade

¹⁰⁰ Prior to consolidation, EAPA 8143 pertained to JOL Tubular and EAPA 8160 pertained to CSP.

¹⁰¹ See also 19 U.S.C. § 1517(b)(5).

¹⁰² See Allegations.

¹⁰³ *Id.* at Exhibits 4-5.

¹⁰⁴ See 19 C.F.R. § 165.13(a); see also 19 U.S.C. § 1517(b)(5)(B). See also Initiation Memorandum.

¹⁰⁵ See 19 C.F.R. § 165.4; see also 19 C.F.R. § 165.23(c) and 19 C.F.R. § 165.26.